2025

ANNUAL REPORT

Behind every procedure is a person

NANSEN
the Belgian refugee council

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2025 was a year of significant change for NANSEN, in many ways.

NANSEN has continued to make a difference through its unique combination of individual and structural work, legal and interdisciplinary expertise, and its key position at the intersection of practice, policy and research. We work alongside people in vulnerable situations who seek protection, bringing legal expertise to the challenges they face. This would not be possible without our exceptionally committed and knowledgeable team.

At the same time, there was significant change within NANSEN itself. With deep gratitude and appreciation, we said farewell to our director, Julie Lejeune, who for many years put NANSEN firmly on the map through her tireless commitment, expertise and leadership. We are very grateful for everything she has contributed to the organisation.

We were equally delighted to welcome Gert Bruininkx as NANSEN's new director. With many years of expertise in statelessness and asylum, both in Belgium and internationally, he brings valuable knowledge and experience to further strengthen NANSEN and its work.

And the future, too, is in motion. The challenges faced by people seeking international protection and by people affected by statelessness are often growing, while the political and financial context is becoming increasingly difficult. In these circumstances, NANSEN's work remains as important as ever: its legal expertise and support help ensure that people can effectively access protection and exercise their fundamental rights.

As we move forward, we do so with confidence in NANSEN's expertise, commitment and unique role - and with gratitude to everyone who makes this work possible.

Ellen Desmet
Proud President of the Board of Directors



NANSEN - 2025 in Review

Behind every procedure is a person with their own needs and vulnerabilities, navigating an increasingly complex system focused on efficiency and speed.

Founded in 2017 by a group of lawyers and academics with expertise in refugee, human rights and migration law, NANSEN aims to develop and make available high-quality legal assistance for people in need of international protection and people affected by statelessness, contributing to the effective protection of their fundamental rights.

The need for this work remains clear. In 2025, 34,439 people applied for international protection in Belgium.[1] Behind each application is a person navigating a legal and administrative system that can be difficult to understand, increasingly complex and constantly evolving. At the same time, the political and public space for a welcoming and human-centred approach to international protection is shrinking. These procedures come on top of the everyday challenges faced by persons forced to flee, including the many forms of trauma that displacement may entail. People affected by statelessness face distinct, but equally significant, challenges in establishing their status, accessing protection and a durable residency status, and enjoying their rights.

As a centre of legal expertise on international protection and statelessness, NANSEN works to ensure that quality legal assistance reaches the people who need it most. We look closely at each person's situation, recognising that everyone may experience visible or less visible vulnerabilities, and draw on an interdisciplinary approach to understand and dismantle the barriers they face.

1 CGVS, *Jaarverslag 2025*, p. 6.

We work on multiple fronts at once: taking on individual cases, developing practical tools and guidance for practitioners, analysing legislation and its application, studying case law, training legal professionals, engaging in a constructive dialogue with asylum authorities and making concrete recommendations to policymakers. This combination is deliberate. It means that we do not simply help people navigate the system as it exists today – we also work to improve the system itself, identifying recurring gaps in law and practice so that international protection and statelessness procedures become fairer and more accessible for everyone who follows.

Our work is guided by three strategic objectives:

- **Improve the quality of legal assistance for people in need of international protection and people affected by statelessness.**
- **Contribute to fair and effective international protection and statelessness procedures.**
- **Promote an interdisciplinary approach to international protection and statelessness procedures.**

In 2025, our small but dedicated team continued to advance this work across all three objectives. This report tells that story in two ways. One that focuses on how and what we work on, such as administrative detention, sexual orientation and/or gender identity, statelessness, and survivors of torture. The second highlights our own individual casework, where NANSEN's legal expertise helps safeguard people's rights and contributes to the development of legal practice on the ground.

These two stories are never truly separate. What we learn from individual cases sharpens our legal analysis; what we develop through our thematic work - tools, training, recommendations - strengthens the support available to others facing similar barriers. Together, they capture how NANSEN works: grounding legal and interdisciplinary expertise in practice, and building expertise from practice, to make international protection and statelessness procedures fairer and fundamental rights more accessible.

Detention

In Belgium, people who apply for international protection at the border are systematically detained - and the border asylum procedure that follows moves fast, often too fast for people to access information, fully understand and exercise their rights, or receive quality legal assistance. The combination of detention conditions and accelerated procedures create significant barriers to effective access to international protection and can lead to breaches of fundamental rights.

For many years, NANSEN has monitored international protection procedures for persons held in administrative detention through regular visits to closed detention centres, individual casework, and rigorous legal analysis, in close cooperation with the MOVE Coalition and other partner organisations.

What we found was troubling. NANSEN observed that information on the possibility of applying for international protection is not always provided at the border and that detention orders often rely on stereotypical justifications rather than individual assessments. NANSEN also identified concerns regarding the effective examination of non-refoulement. Legal safeguards intended to address these problems - appeals, judicial review - too often fail to provide a meaningful check.

In 2025, we turned two years of fieldwork into four NANSEN publications:

- a note on the border asylum procedure and detention at the border,
- a note on the effectiveness of appeals against refoulement decisions,
- a summary note with key findings of NANSEN's work in detention,
- a detailed case study.

These publications document practices, highlight existing barriers, present concrete recommendations and provide practical tools to legal practitioners to provide quality legal assistance.

NANSEN brought these findings directly to practitioners. Together with the European Council on Refugees and Exiles (ECRE), we hosted an event on non-refoulement at the border, bringing together more than 60 participants, including lawyers, representatives of the asylum authorities and NGO staff. We also trained another 40 practitioners – including social workers, lawyers and interpreters – through a session on non-refoulement delivered at the UCLouvain's Course on Refugee and Migration Law. We deepened our partnership with the Move Coalition by training their detention visitors, joining their monthly meetings, and building referral pathways so that people in detention can access the right expertise more quickly. We also maintained a direct dialogue with immigration and asylum authorities, raising concerns in individual cases and sharing our structural observations.

None of these activities will fix the system overnight. But together, they ensure that the problems in Belgium's practice of detaining people seeking international protection are no longer invisible: they are documented, evidenced, and shared with policy makers who can make a difference. The trainings, practical guidance and support provided to lawyers and frontline actors strengthen the legal assistance available to persons in need of international protection who are held in administrative detention.



Said (alias) comes from Afghanistan. Because of the risks he would face if returned to that country, Italy granted him subsidiary protection. In 2025, Said travelled to Belgium. Arriving from Turkey, he was arrested at the Belgian border and placed in detention. Belgian authorities were planning to send him back to Turkey. Made aware of the upcoming flight, NANSEN wrote an intervention to warn the authorities of the significant risk of indirect refoulement and prevent them from sending Said to Turkey.

Sexual orientation and/or gender identity

People seeking international protection because of their sexual orientation and/or gender identity (SOGI) face multiple and intersecting forms of exclusion and discrimination.

Within the asylum procedure, credibility assessments can be particularly challenging for SOGI applicants, who are often required to substantiate deeply personal feelings and experiences within a system that is not always equipped to understand them. Outside the asylum procedure, discrimination, stigma and even violence can follow them into their communities, reception centres and support services. Adding to these challenges, relevant expertise is scattered across different organisations, making support difficult to navigate.

NANSEN responds by pairing its legal expertise with organisations working directly with LGBTQIA+ people. WAWY ("We Are With You") is central to this: a network we run alongside Merhaba, the Rainbow Refugee Committee, Vluchtelingenwerk Vlaanderen and the Humanitarian Hub. With financial support from Equal.brussels, WAWY brings these organisations together to strengthen collaboration, exchange expertise and improve support for SOGI applicants. Through regular partner meetings, joint training, case discussions, field visits and a bi-monthly newsletter, we bring legal expertise and an interdisciplinary approach to the table and translate practical, on-the-ground knowledge and lived experiences shared by the network back into our own casework. The number of SOGI cases that NANSEN assisted in recent years has grown steadily - a sign both of rising need and of the value of these partnerships and referral pathways.

In 2025, we turned casework and collaboration into tools for practitioners. We developed two practical fact sheets available in Dutch, French and English - one providing a step-by-step overview of the Belgian asylum procedure, with specific points of attention for SOGI applicants and the other focusing on evidence and the challenges these applicants may face when substantiating their request for international protection.

Together with our WAWY partners, we brought together around 60 lawyers at the Brussels Bar - introducing them to the organisations working in this space and to concrete ways lawyers and civil society organisations can work together to support SOGI applicants. We also engaged with SOGI applicants themselves, providing practical guidance on the asylum procedure. Drawing on our casework, we contributed legal expertise to a policy paper by çavaria and Prisme, developed as part of their project Safer Spaces for LGBTI+ asylum seekers, which puts forward concrete recommendations for safer, more inclusive reception conditions.

A significant new step in 2025: NANSEN held its first-ever dedicated meeting on gender with the Office of the Commissioner General for Refugees and Stateless Persons (CGRS) Gender service. We shared our findings on emerging challenges in SOGI-related cases, highlighted barriers and presented our expertise and concrete recommendations.

The result of all this work: practitioners with sharper tools, applicants with clearer guidance and better support, and a growing body of evidence pointing to where change is still needed.



Omar (alias), an Iraqi man, was referred to NANSEN by Merhaba for legal assistance with his seventh application for international protection, the first based on his sexual orientation. He had fled Iraq because of his homosexuality but had not disclosed this during his previous applications. NANSEN assessed that his sexual orientation constituted a new element that could significantly increase the likelihood of establishing his need for international protection. NANSEN therefore formally intervened before the CGRS and documented the reasons why he had not disclosed his sexual orientation in the past: shame, fear of the Belgian authorities, his life in a reception centre with many Iraqi residents and concerns about the Iraqi interpreter during his first interview. NANSEN further highlighted his particular vulnerability. Omar was subsequently invited to a personal interview, which NANSEN attended as his trusted person. Omar was later recognised as a refugee.

Statelessness

"Without nationality, individuals face an existence characterised by insecurity and marginalisation"

UNHCR, Handbook on Protection of Stateless Persons

Without a nationality, stateless people can face serious hurdles in establishing their identity, obtaining documentation, securing residence, or accessing fundamental rights such as work, healthcare, education and family life. The legal and factual questions behind statelessness are often complex, making it hard to even establish that someone is stateless - let alone access protection and basic services.

The procedures that stateless people need to navigate to establish their status and seek protection in Belgium are complex, lengthy and characterised by structural barriers that can be extremely difficult, if not impossible, to overcome. Throughout its existence, NANSEN has provided specialised legal support to people affected by statelessness, through individual casework, legal analysis, strategic litigation and knowledge-sharing.

In 2024, Belgium introduced a dedicated residence procedure for stateless persons, following several Constitutional Court rulings which identified the lack of such a procedure as creating an unjustified difference in treatment between recognised stateless persons and recognised refugees. This was an important step – but from the outset it was clear that the legislation introduced real barriers and lacked sufficient procedural safeguards. From September 2024 and throughout 2025, its first full year in operation, questions emerged about the effectiveness of the procedure, while the structural barriers identified from the outset were confirmed in practice, preventing stateless persons from accessing residence. NANSEN monitored its implementation closely through individual casework and direct exchanges with relevant authorities, including the Immigration Office and CGRS.

We also went further: together with other organisations, NANSEN challenged parts of the new procedure before the Constitutional Court, arguing that certain provisions created disproportionate barriers to residence, provided insufficient procedural safeguards, and failed to meet Belgium's obligations under the 1954 Convention relating to the Status of Stateless Persons. The Court delivered its judgment in 2026, annulling several provisions of the law and NANSEN will continue to monitor its implications for stateless people trying to access residence.

The complexity of the legal framework also creates a need for accessible and reliable information for practitioners. NANSEN produced a practical guide on statelessness in Belgium, bringing together the legal and practical information practitioners need most. Publication of the guide was put on hold pending the Constitutional Court proceedings, as the outcome could affect the applicable legal framework. While the guide will be updated following the Constitutional Court judgment and any relevant changes to the procedures, NANSEN continues to use the guide in its daily work supporting affected individuals.

Since 2023, troubling emerging practices related to the prevention of statelessness under Article 10 of the Belgian Nationality Code for children born in Belgium have been observed. These developments particularly concerned children born in Belgium to parents of Palestinian origin and, in 2025, resulted in important case law. NANSEN continues to monitor these developments and provides legal support to lawyers and through individual casework.

In 2025, NANSEN continued to invest in awareness raising and capacity building on statelessness. This included the development and recording of an online training module on statelessness for the Flemish Bar Association's online training system, accessible to over 11.000 registered lawyers in Flanders. NANSEN also provided a guest lecture to law students at Ghent University, introducing the next generation of legal practitioners to this often-overlooked area of law.

The EU Pact on Migration and Asylum also raises important questions for stateless people. NANSEN analysed its implications for Belgium and put forward concrete recommendations to ensure that statelessness is properly identified and registered. As the Pact is implemented, NANSEN will closely monitor how these safeguards are applied in practice and whether they contribute to stronger protection of stateless people.

Beyond Belgium, NANSEN brought its expertise to the European Migration Network's multistakeholder meeting on statelessness in October 2025 and continued contributing to the European Network on Statelessness and the Statelessness Index - tracking how Belgian law and practice measure up against international standards.

The result of NANSEN's work on statelessness in 2025: a new legal pathway put to a real test, a Constitutional Court challenge pushing a necessary procedure towards fairness and effectiveness, and a growing base of practitioners equipped to recognise and support stateless people and uphold every child's right to a nationality.

Survivors of torture

People who have experienced torture often face specific barriers when seeking international protection. The physical and psychological consequences of torture can shape how someone is able to recount and substantiate what happened to them. Medical evidence and a better understanding of the visible and less visible consequences of torture can be decisive in these cases, but only if it is properly gathered and given appropriate weight.

NANSEN's work with survivors of torture centres on individual legal assistance: helping survivors document their injuries and the consequences of ill-treatment through specialised medical examinations and reports, prepared in line with the Istanbul Protocol. This work is funded by the United Nations Voluntary Fund for Victims of Torture (UNVFVT). We monitor whether and how the asylum authorities take medical evidence into account when assessing protection claims and track the identification of special procedural needs. As an implementing partner of UNHCR, NANSEN can intervene directly with the CGRS, in addition to working with lawyers, to help ensure that procedures are adapted to the specific needs of applicants where possible.



Carmen (alias), a woman from Rwanda, was sexually abused by the Rwandan authorities while arbitrarily detained. With the support of her psychologist, she approached NANSEN for legal assistance with her second application for international protection. NANSEN assessed that the harm she suffered legally amounted to torture and constituted persecution under the Refugee Convention, and that she needed international protection. Through several meetings, NANSEN established a relationship of trust with Carmen, while also maintaining close contact with her lawyer, psychologist and psychiatrist. These mental health professionals provided documentation explaining her situation of vulnerability when she first applied for asylum and the difficulties she continues to face in disclosing the atrocities she experienced. Drawing on this evidence and its legal expertise, NANSEN submitted a detailed argumentation to the CGRS in support of her need for international protection. When the CGRS declared her second asylum request inadmissible, NANSEN sent valuable information to Carmen's lawyer to support her appeal. The case is currently pending before the Council of Alien Law Litigation.

In 2025, we also published two case studies showing what is at stake in practice: one concerned a Honduran woman who had experienced intrafamilial sexual violence, the other a Sahrawi human rights defender who had been tortured.

Moreover, we brought our expertise to the professionals responsible for identifying and assessing torture survivors. We contributed to a training for volunteer doctors carrying out medical examinations in detention. We trained 60 CGRS Protection Officers on the Istanbul Protocol and how to read detailed medical reports, giving us direct access to decision-makers who determine whether and how medical reports and evidence are used in making decisions on international protection.

Through our work in 2025, NANSEN continued to ensure that survivors are better equipped to have their experiences properly documented, and the people deciding their cases better prepared to recognise torture, understand the implications of identifying survivors, and the consequences this should have for how procedures are conducted and decisions made.

Interdisciplinarity

International protection can rarely be understood through legal analysis and expertise alone. The experiences, vulnerabilities and needs of people seeking protection often have psychological, social, medical or cultural dimensions that matter just as much to their case as legal arguments. For NANSEN, working across disciplines is not a side project – it is a core part of how we work and touches on all aspects of what we do. By connecting legal expertise with knowledge from other disciplines, NANSEN seeks to contribute to a fuller understanding of people's experiences and, ultimately, to more effective access to international protection for those in need.

In 2024, NANSEN launched a Proof Your Social Innovation (PYSI) project, funded by Innoviris (Brussels-Capital Region), to deepen this approach by exploring how interdisciplinarity can lead to a more complete understanding of international protection cases. We translated the lessons from this project into a practical guide on interdisciplinarity in international protection cases. The guide helps legal practitioners recognise the value of interdisciplinarity, work with experts from other fields, and integrate their insights in legal practice.

The guide was finalised in 2025, with publication following in 2026. It is the culmination of two years of work, and a resource we hope will contribute to shaping how legal practitioners approach their cases.

The wider international protection space

NANSEN monitors developments across the broader international protection system, identifies emerging legal questions and needs, and responds through legal analysis, knowledge-sharing, strategic litigation and support to practitioners and people seeking international protection.

Monitoring developments is an important part of NANSEN's cooperation with UNHCR as implementing partner in Belgium. In 2025, NANSEN produced monthly monitoring reports covering key developments relating to asylum, statelessness, reception and detention. Monthly meetings with UNHCR provided an opportunity to discuss developments and exchange expertise.

We translate this monitoring into practical tools, legal analysis and knowledge-sharing, responding to emerging trends. In 2025, this included a note on people with international protection status in Greece who subsequently seek protection in Belgium. The note responded to a practical need: understanding when a person who has already received international protection in Greece may nevertheless have grounds to seek international protection in Belgium. NANSEN brought together recent information on the situation of beneficiaries of international protection in Greece and jurisprudence of the Council for Alien Law Litigation (Dutch Chamber). It provides practitioners with a tool for supporting people who may find themselves in this situation.

In 2025, NANSEN invested significant time in strengthening our direct cooperation with communities and community-based organisations. We provided training to beneficiaries of Pigment vzw, focusing on subsequent applications for international protection and providing practical guidance on how to navigate these complex procedures. NANSEN also collaborated with the Umbrella Refugee Committee, a platform led by, for and with forcibly displaced people, and several academic partners, to develop a concrete research project, highlighting the need for including the expertise of persons with lived experience in our activities and academic research.

NANSEN does not simply respond to the system as it is - we work to improve it. In 2025, this meant maintaining structural dialogue with the CGRS, sharing our findings, expertise and concrete recommendations, and taking part in the CGRS working group on vulnerability to help strengthen how vulnerability is understood and assessed. We also introduced our work directly to CGRS staff through a dedicated information session.

NANSEN always aims to address issues through structural dialogue first - but sometimes, when fundamental rights are at stake and dialogue is absent, a different kind of action is needed. Together with civil society partners, NANSEN contributes to strategic litigation when legislation introduces demonstrable barriers to the fundamental rights of people in need of international protection. In 2025, these efforts ranged from asylum procedures and the use of video conferencing to reception and return policy.

We also invested in the next generation of legal practitioners and researchers. Through legal clinics, training sessions and support for master's theses, we work with universities to strengthen academic knowledge and research on international protection – ensuring that expertise on emerging trends related to international protection and statelessness continues to grow and that academic insights are translated into legal practice and international protection procedures.

Individual casework in numbers

Individual casework is at the heart of NANSEN's work: it allows us to provide specialised legal expertise where it is needed most, while also giving us a direct view of how the international protection system operates in practice – bringing emerging issues to light that might otherwise remain under the radar and helping us identify the thematic issues that require our attention.

In 2025, NANSEN worked actively on 171 individual cases. The number is modest; the work behind it is not. Each case can mean weeks of reading through administrative files and decisions, researching country-of-origin information, meeting with the person , coordinating with their lawyers, psychologists, doctors, social workers or the wider support network around them.

The majority concerned people seeking international protection on the Belgian territory (83 cases) or while held in administrative detention (74 cases). 14 cases concerned questions of stateless persons, or children at risk of statelessness.

Palestinian applicants were the most represented, followed by people from Afghanistan, Yemen, the Democratic Republic of the Congo, Guinea and Syria. NANSEN supported 101 men, 51 women and 19 families.

Most often, that support meant legal information and advice to lawyers - the less visible end of the work, built case by case, rarely making headlines. In a smaller number of cases, NANSEN intervened directly with the CGRS or Immigration Office. In 2025, NANSEN continued to work with a wide network of civil society partners, ensuring safe referral pathways for people in need of assistance outside the scope of NANSEN's activities.

Carmen, Omar and Said are just three of these 171 cases. Behind every one of the others is the same depth of legal analysis, research and human contact - a person, and everything it took to be properly heard.

None of this work happens alone. We are grateful to NANSEN's General Assembly and Board of Directors, for their continued guidance and commitment to NANSEN's mission. To our donors, large and small, including those who choose to support us anonymously - your support makes this work possible, year after year. To our network of partners, for the knowledge, referrals and collaboration that strengthen everything we do. To the lawyers we work alongside every day, for their shared commitment to getting it right for the people we serve together.

And finally, to the people who come to us - who share what happened to them, often more than once, with people they've only just met, and who trust us to try and find a way through. That trust is not something we take lightly. It is the reason this work matters.

Warm wishes,
Team NANSEN



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